

LETTER TO FRENCH CONSULATE IN MIAMI

Marc Moszkowski

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To:

The Consulate General of France in Miami

1395 Brickell Avenue, suite 1050

Miami, FL 33131

contact@consulfrance-miami.org

Subject: Request for Consular Assistance: Civil Proceeding in Escambia County, Florida

Dear Sir or Madam,

I am a French citizen residing in France, and I write to request your urgent attention and possible consular support regarding a civil legal proceeding in the Circuit Court of Escambia County, Florida (Case No. 2018 CA 000543), in which I am the named Defendant. I have no legal representation and am facing a potentially ruinous judgment under conditions that appear to violate the most basic principles of procedural fairness and access to justice for a foreign national.

This case is particularly extraordinary in that the Plaintiff is DeepGulf, Inc., a corporation in which I am a co-owner with an estimated 50% equity interest (the precise figure is uncertain due to corporate record irregularities). In effect, I am being sued by an entity I co-own, without any valid board resolution authorizing the litigation, and without

meaningful opportunity to defend myself due to my geographic, physical, and financial limitations, 5,000 miles from the Court.

The U.S.-based plaintiffs initiated the suit in 2018. I removed the case to U.S. federal court, where I prevailed in 2019. They later refiled the same claims in state court, where I have faced ongoing procedural barriers. Despite submitting medical documentation showing that I suffer from two large untreated hernias which prevent long-distance travel, and despite demonstrating financial destitution, the court refused all requests for remote appearance or procedural accommodation and judged me in absentia and by default.

A proposed Final Judgment was submitted on June 26, 2025, and Plaintiffs filed their version on July 1. I submitted a comprehensive redlined rebuttal on July 11, along with twenty additional formal pleadings between June 26 and July 17, including motions, factual objections, constitutional notices, and a sworn affidavit. Not one of these has been ruled upon or acknowledged beyond a one-word email receipt from the judicial assistant. The Court's silence suggests a procedural entrenchment in disregard of my defense.

A parallel injustice has occurred in France. In 2019, I prevailed on the same underlying matter in the Tribunal des Référés in Draguignan. Nevertheless, a DeepGulf shareholder filed suit again in a separate court, and I lost by default, not due to substance, but because I was unrepresented (having no funds to retain counsel), and self-representation is not permitted under French civil procedure. I also never received notification of the hearing date, yet the court issued judgment in absentia, resulting in the seizure of my home, my only asset.

In both countries, adverse parties revived claims that had already been dismissed on the merits and secured victory only by engineering default, exploiting procedural limitations and my inability to appear or be heard. In both cases, the claims were indisputably time-barred under the relevant statutes of limitation, a defense that has been ignored without explanation.

I therefore respectfully ask whether the French consular authorities may intervene, inquire, or issue a formal statement of concern with regard to these proceedings. At minimum, I seek acknowledgment that the systemic lack of protection for a French citizen abroad—when unrepresented and effectively barred from participation—is incompatible with the principles France purports to defend.

I have compiled the entire Pensacola Court docket and case history at the following public URL:

<https://marc-moszkowski.github.io/Dockets/2018 CA 000543.html>

I remain at your full disposal to provide documentation, sworn statements, or any other clarification the Consulate or Embassy may require.

Respectfully,

Marc Moszkowski

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.